

ACHPR/Res.379 (LXI) 2017: Resolution on the Renewal of the Mandate of the Special Rapporteur on Refugees, Asylum Seekers, Internally Displaced Persons and Migrants in Africa

The African Commission on Human and Peoples' Rights (the Commission), meeting at its 61st Ordinary Session held from 1 to 15 November 2017 in Banjul, The Gambia:

Recalling its mandate to promote and protect human and peoples' rights in Africa under the African Charter on Human and Peoples' Rights (African Charter);

Bearing in mind the adoption and coming into force of the 1951 Convention on the Status of Refugees and its 1967 Protocol, and the 1969 OAU Convention Governing the Specific Aspects of Refugee Problems in Africa;

Also bearing in mind the adoption in 2009 and the coming into force in 2012 of the African Union Convention for the Protection and Assistance of Internally Displaced Persons in Africa (Kampala Convention);

Recalling the decision adopted at its 35th Ordinary Session held from 21 May to 4 June 2004 in Banjul, The Gambia, establishing the mechanism of the Special Rapporteur on Refugees, Asylum Seekers and Internally Displaced Persons in Africa;

Mindful of Resolution ACHPR/Res. 72 (XXXVI) 04 adopted at its 36th Ordinary Session held from 23 November to 7 December 2004 in Dakar, Senegal, and which defined the mandate of the Special Rapporteur on Refugees, Asylum Seekers and Internally Displaced Persons in Africa;

Recalling Resolution ACHPR/Res. 95 (XXXIX) 06 expanding the mandate of the Special Rapporteur to also include migrant issues;

Bearing in mind its Resolutions ACHPR/Res.160 (XLVI) 09, ACHPR/Res.187 (XLIX) 11, and ACHPR/Res.203 (L) 11 on the appointment of the various Special Rapporteurs on Refugees, Asylum Seekers, Internally Displaced Persons and Migrants in Africa;

Recalling its Resolutions ACHPR/Res.246 (LIV) 2013 and ACHPR/Res.318 (LVII) 15 on the Renewal of the Mandate of the Special Rapporteur on Refugees, Asylum Seekers, Internally Displaced Persons and Migrants in Africa;

Bearing in mind its Resolutions ACHPR/Res.234 (LIII) 13 and ACHPR/Res 277 (LV) 14 respectively on the need to undertake a study on nationality and to develop a Draft Protocol on Nationality and the Eradication of Statelessness in Africa;

Considering the need to continue to work with States Parties to the African Charter

on Human and Peoples' Rights towards the adoption of the draft Additional Protocol to the African Charter on the Right to Nationality and the Eradication of Statelessness in Africa;

Taking into account the constantly worsening situation of refugees, asylum seekers, internally displaced persons and migrants;

Considering the need to continue to advocate for the ratification of the Kampala Convention and its effective implementation on the continent by States Parties;
Done in Banjul, The Gambia, 15 November 2017

Reiterating the importance of the mechanism of the Special Rapporteur on Refugees, Asylum Seekers, Internally Displaced Persons and Migrants in Africa;

Noting with satisfaction the work accomplished by Commissioner Maya Sahli Fadel as Special Rapporteur on Refugees, Asylum Seekers, Internally Displaced Persons and Migrants in Africa;

Considering also the need for the mechanism of the Special Rapporteur on Refugees, Asylum Seekers, Internally Displaced Persons and Migrants in Africa to continue to carry out its mandate;

Decides to renew the mandate of **Commissioner Maya Sahli-Fadel** as the Special Rapporteur on Refugees, Asylum Seekers, Internally Displaced Persons and Migrants in Africa for a two-year period, with effect from 15 November 2017.

Done in Banjul, The Gambia, 15 November 2017